

Court No. - 39

Case :- WRIT - C No. - 12748 of 2017

Petitioner :- Ram Sumer Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Sri Mahboob Ahmad, learned counsel for the respondents prays for and is granted a week's time to seek instructions as to whether any provisional assessment or final assessment was done.

Place this petition as fresh on 6 April 2017.

Order Date :- 28.3.2017

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(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 3

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Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has challenged the impugned demand notice dated 21.04.2015 issued by respondent no.3.

The challenge is merely on the ground that recovery proceedings have been initiated without providing any provisional assessment bill and notice and opportunity to contest the same.

When the matter was taken up as fresh on 28.3.2017, Sri Mahboob Ahmad, who has accepted notice on behalf of respondent nos.2 and 3 was required to obtain instructions with respect to the grounds set out in the writ petition that recovery proceedings have been initiated without any provisional assessment bill.

Today, when the matter called out, learned counsel for the respondents has passed on a copy of the instructions received by him which are taken on record. Copy of the instructions passed on to us contains a provisional assessment bill assessing a sum of Rs.69,297/- and a provisional notice dated 15.07.2014. However, there is nothing on record to indicate that the provisional assessment notice was ever sent to the petitioner as there is no indication of mode and manner of dispatching the same nor does the provisional assessment notice indicate any date for hearing in the matter.

Sri Mahboob Ahmad, learned counsel for the respondents contends that since the petitioner did not file any objection to the provisional assessment, as such it was treated to be final and accordingly a recovery notice was issued.

Learned counsel for the petitioner points out that since the copy of the provisional assessment notice was never received by the petitioner, as such, he could not submit his reply and, thus, entire proceedings are vitiated.

Since there is no material on record to indicate the mode and manner of sending the provisional assessment, the only presumption which can be drawn that it was not sent to the petitioner. Further, the provisional assessment also does not indicate any date for hearing.

This Court in the case of **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the consumer. In the present case, we find that the provisional assessment notice does not appears to have been sent to the petitioner nor had specified the date and time for hearing, which was required under the U.P. Electricity Supply Code, 2005. The procedure adopted by the respondents in making provisional assessment and issuance of recovery certificate is de-horse the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8(b) of the said Code and, thus, the impugned recovery proceedings initiated against the petitioner cannot be sustained.

Consequently, the writ petition is allowed. The impugned demand notice dated 21.4.2015 issued by respondent no. 3 is hereby quashed. The respondent is directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering the petitioner's objection, giving reasons to meet the objection of the petitioner in the light of the observations made in **Ashok Kumar (Supra)**.

Order Date :- 12.4.2017
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